Form No: HCJD/C-121

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Civil Revision No.13865 of 2024

Muhammad Umar Farooq *Versus* *Irshad Bibi*

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary

08.04.2024 Mian Tariq Hussain, Advocate for the petitioner

Succinctly, respondent Irshad Bibi instituted a suit for declaration against the present petitioner to the effect that she is an old aged widow and illiterate; that the petitioner is a very cunning person and he, in connivance with the revenue staff, got transferred agricultural land measuring 21-Kanals 13-Marlas, comprising Khata No.59, Khatuni No.209 to 214, situated in Chak No.334/GB Rajuwala Tehsil Pir Mahal, District Toba Tek Singh as per record of rights for the year 2014-15 vide mutation No.1355 dated 27.06.2019 without knowledge of the respondent/ plaintiff; that the land was in possession of Muhammad Rasheed as tenant and on his refusal to pay the tenancy amount, it came to her knowledge that the petitioner has got transferred the disputed land in his name through the above said mutation; hence, the suit. The suit was contested by the petitioner. Out of the divergent pleadings of the parties, the learned trial

Court framed issues and evidence of the parties, in pro and contra, was recorded. On conclusion of trial, the learned trial Court decreed the suit in favour of the respondent vide impugned judgment and decree dated 03.10.2023. The petitioner being aggrieved preferred an appeal. The learned appellate Court vide impugned judgment and decree dated 31.01.2024 dismissed the appeal; hence, the instant revision petition.

2. Heard.

3. As to transaction regarding property with a pardanasheen, infirm/old and illiterate lady, the Supreme Court of Pakistan in a judgment reported as *Phul Peer Shah v. Hafeez Fatima* **(2016 SCMR 1225)** has given the parameters and conditions to be fulfilled in a transparent manner and held that:-

> *'In case of a (property) transaction with an old, illiterate/rustic village 'Pardanasheen' lady the following mandatory conditions should be complied with and fulfilled in a transparent manner and through evidence of a high degree so as to prove the transaction as legitimate and dispel all suspicions and doubts surrounding it:-*
>
> *i. That the lady was fully cognizant and was aware of the nature of the transaction and its probable consequences;*

ii. *That she had independent advice from a reliable source/person of trust to fully understand the nature of the transaction;*

iii. *That witnesses to the transaction were such, who were close relatives or fully acquainted with the lady and had no conflict of interest with her;*

iv. *That the sale consideration was duly paid and received by the lady in the same manner; and*

v. *That the very nature of transaction was explained to her in the language she understood fully and she was apprised of the contents of the deed/ receipt, as the case may be.'*

Moreover, this Court has held that old and illiterate ladies are entitled to the same protection which is available to the *Parda* observing lady under the law; reliance is placed on *Muhammad Afzal v. Muhammad Zaman* **(PLD 2012 Lahore 125)**. Furthermore, in *Ghulam Muhammad v. Zahoran Bibi and others* **(2021 SCMR 19)**, the Supreme Court of Pakistan has held:-

'It is settled law that the beneficiary of any transaction involving parda nasheen

> *and illiterate women has to prove that it was executed with free consent and will of the lady, she was aware of the meaning, scope and implications of the document that she was executing. She was made to understand the implications and consequences of the same and had independent and objective advice either of a lawyer or a male member of her immediate family available to her.'*

In a judgment reported as *Muhammad Naeem Khan and another v. Muqadas Khan (decd) through L.Rs. and another* **(PLD 2022 Supreme Court 99)**, the Supreme Court of Pakistan has invariably held:-

> *'If any such plea is taken then it is a time-honored parameter that in case of a document executed by a pardanashin lady, the burden of proof is on the party who depends on such a deed to persuade and convince that Court that it has been rad over and explicated to her and she had not only understood it but also received independent and disinterested advice in the matter. The aforesaid parameter and benchmark is equally applicable to an illiterate and ignorant woman who may not be a pardanashin lady. If authenticity or trueness of a transaction entered into by a pardanashin lady is disputed or claimed to have been secured on the basis of fraud or*

> *misrepresentation, then onus would lie on the beneficiary of the transaction to prove his good faith and the court has to consider whether it was done with freewill or under duress and has to assess further for an affirmative proof whether the said document was read over to the pardanashin or illiterate lady in her native language for her proper understanding.'*

However, in the present case, no such evidence showing that the respondent was having an independent advice and was fully aware and cognizant of the nature of the transaction, was brought on record by the petitioner.

More and above, the petitioner could not lead any evidence to show that as to when and where the bargain with regards to the sale of the suit property was struck in between the parties, rather he has admitted during cross examination that no bargain was struck inter se the petitioner and respondent and even names of witnesses were not pleaded, because entering of mutation in the revenue record is subsequent event and it is only for fiscal purposes.

Over and above, after specific denial of execution of the disputed sale mutation by the respondent and making of thumb impression over the same, the petitioner did not make any exertion to get

compared the thumb impression of the respondent by moving an application in this regard before the learned trial Court; meaning thereby the stance taken up by the respondent in this regard has not been negated by the present petitioners rather in an implied manner has admitted the same. The petitioner could not produce the witnesses in whose presence the disputed mutation was entered into revenue record and the revenue officer, who attested the mutation was also not produced. So adverse presumption as per mandate of article 129(g) of Qanun-e-Shahadat Order, 1984 arises against the petitioners that had the said witnesses been produced in the witness box, they would not have supported the stance of the petitioner. Even, mother of the petitioner appeared as P.W.2 and deposed against the petitioner, which creates doubts about the veracity and validity of the disputed mutation. In this view the matter, the learned Courts below have rightly concluded that the petitioner failed to prove his case by leaving unimpeachable and confidence inspiring evidence.

4. Pursuant to the above, when impugned judgments and decrees, passed by the learned Courts below and evidence of the parties are put in juxtaposition, it gleans out that evidence of the parties has minutely been scanned and appraised/ appreciated

while recording the judgments by learned Courts below; no misreading and non-reading of evidence has surfaced. Therefore, the learned Courts below have reached to the conclusion in a proper way, concurrently, which cannot be interfered with in exercise of revisional jurisdiction under section 115, Code of Civil Procedure, 1908 as has been held in judgments reported as *Muhammad Farid Khan v. Muhammad Ibrahim, etc.* **(2017 SCMR 679)**, Mst. *Zaitoon Begum v. Nazar Hussain and another* (**2014 SCMR 1469)**, *CANTONMENT BOARD through Executive Officer, Cantt. Board Rawalpindi v. IKHLAQ AHMED and others* **(2014 SCMR 161)**, *Muhammad Sarwar and others v. Hashmal Khan and others* **(PLD 2022 Supreme Court 13)** and *Mst. Zarsheda v. Nobat Khan* **(PLD 2022 Supreme Court 21)** wherein it has been held by Supreme Court of Pakistan that:-

> *'There is a difference between the misreading, non-reading and misappreciation of the evidence therefore, the scope of the appellate and revisional jurisdiction must not be confused and care must be taken for interference in revisional jurisdiction only in the cases in which the order passed or a judgment rendered by a subordinate Court is found perverse or suffering from a jurisdictional*

> *error or the defect of misreading or non-reading of evidence and the conclusion drawn is contrary to law. This court in the case of Sultan Muhammad and another v. Muhammad Qasim and others (2010 SCMR 1630) held that the concurrent findings of three courts below on a question of fact, if not based on misreading or non-reading of evidence and not suffering from any illegality or material irregularity effecting the merits of the case are not open to question at the revisional stage.'*

Further in judgment reported as *Salamat Ali and others v. Muhammad Din and others* **(PLJ 2023 SC 8)**, it has invariably been held by Supreme Court of Pakistan that:-

> *'Needless to mention that a revisional Court cannot upset a finding of fact of the Court(s) below unless that finding is the result of misreading, non-reading, or perverse or absurd appraisal of some material evidence. The revisional Court cannot substitute the finding of the Court(s) below with its own merely for the reason that it finds its own finding more plausible than that of the Court(s) below.'*

5. For the foregoing reasons and while placing reliance on the judgments *supra* as well as judgments reported as *Ghulam Muhammad v. Zohran*

Bibi and others **(2021 SCMR 19)**, *Ghulam Farid and another v. Sher Rehman through LRs.* **(2016 SCMR 862)** & **(PLJ 2016 SC 430)** and *Syed Sharif-Ul-Hassan (decd.) through L.Rs. v. Hafiz Muhammad Amin and others* **(PLJ 2013 SC 37)**, the civil revision in hand comes to naught, hence same stands dismissed ***in limine***.

(Shahid Bilal Hassan)
Judge

Approved for reporting.

Judge

M A. Hassan